

24STCV10882 24STCV10882

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Plaintiff Julianna Bardon's motion for terminating sanction or in the alternative, issue and evidence sanctions against Defendants Tarek Aly and 3025-3027 Vermont Plaza, LLC and for monetary sanctions is granted in part and denied in part.

Plaintiff seeks an order for terminating sanctions or alternatively issue and evidence sanctions against Defendants, as well as monetary sanctions against Defendants and counsel, based on Defendants' failure to comply with the Court's prior discovery orders. Plaintiff seeks monetary sanctions of \$4,600 against Defendants and counsel, jointly and severally. Defendants did not file an opposition.

Background

On June 12, 2026, the Court took Plaintiff's motions to have RFAs deemed admitted against Defendants off calendar as moot because Defendants served substantially compliant verified written responses prior to the hearing. The Court did, however, award monetary sanctions of \$1,270 against Defendants and counsel, jointly and severally, to be paid within 30 days of the order.

On July 1, 2026, the Court granted motions to compel responses to form interrogatories, special interrogatories, document requests against both Defendants, plus a total of \$7,260 in monetary sanctions against Defendants and counsel, jointly and severally. The Court ordered Defendants to serve verified Code-compliant written responses, with no objections, plus responsive documents, by July 15, 2026. The Court ordered the monetary sanctions paid within 30 days of the order.

Analysis

Ultimate discovery sanctions are justified where there is a willful discovery-order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. *Van Sickie v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.

Plaintiff argues that terminating sanctions, or alternatively, issue or evidence sanctions, are warranted because Defendants have not complied with the Court's June 12 and July 1 orders.

June 12 Order: Defendants have not paid the \$1,270 monetary sanctions order from June 12 as of the filing date of the motion, and they filed no opposition. The Court concludes their non-payment constitutes willful disobedience with the Court's order. Plaintiff also contends that Defendant Aly did not serve substantially compliant responses to the RFAs prior to the June 12 order, noting that the responses attached to Defendant Aly's opposition to Plaintiff's RFA motion were from a different case. Plaintiff has never sought relief from the Court regarding its order taking the RFA motion off calendar, and in fact its counsel did not raise any objection to the Court's conclusion that Defendant Aly had served substantially compliant responses. On this record, the Court cannot conclude that Defendant Aly has willfully withhold a court order on the RFAs when the Court's order deemed the issue moot.

July 1 Order: As with the June 12 order, Defendants have failed to pay the monetary sanctions in the July order. This is further evidence of their willful disobedience with the Court's order. The willfulness is compounded by the fact that Defendants have also failed to serve verified Code-compliant written responses, with no objections, plus responsive documents, by July 15, 2026. To date, Defendants have not provided any of the ordered discovery responses.

Defendants had served (and filed) inadequate responses to the interrogatories and document requests prior to the July 1 hearing, which contained objections and did not include a document production. The Court therefore granted the motions to compel. Defendants have not opposed the terminating sanctions motions and thus have provided no explanation for their utter disregard of the Court's July 1 order. The Court is left with the conclusion that Defendants have no intention of living up to their discovery obligations. The fact that they served some prior responses, albeit inadequate and not Code-compliant, militates

against terminating sanctions at this time. However, the Court agrees with Plaintiff that increased sanctions are necessary given Defendants' intransigence regarding discovery.

The discovery Defendants have failed to answer relates to the issues Plaintiff needs to develop in this habitability case. The issue and evidence sanctions provided below are tailored to address the various discovery requests that Plaintiff sought, and which Defendants have steadfastly refused to provide. The Court issues the following order:

(1)

It is established that the premises at 1303 W. 30th Place, Los Angeles, CA were substandard and untenable within the meaning of Civil Code Section 1941.1 throughout Plaintiff's tenancy;

(2)

It is established that Defendants had notice of the substandard and untenable conditions and failed to repair them within a reasonable time;

(3)

It is established that Defendants owned, managed, and operated the premises and were Plaintiff's landlords at all relevant times;

(4)

Defendants are prohibited from supporting their affirmative defenses with any evidence; and

(5)

Defendants are prohibited from introducing at trial any document they failed to produce, and any witness they failed to identify, in response to the discovery requests covered by the July 1 order.

The Court declines to impose further monetary sanctions.

Defendants have, to date, failed to pay any of the outstanding monetary sanctions. Their failure to pay the money sanctions, coupled with their failure to answer the discovery, forms the basis for why the Court has now exercised its discretion to increase the sanctions to the issue and evidence sanctions listed above.

Conclusion

The motion is denied with regards to terminating sanctions and monetary sanctions, and granted as to the request for issue and evidence sanctions.